ZURIAUTO

General Terms and Conditions (GTC)

As of 22 October 2026

Lessor: Rigitrade AG (the "Lessor")
The version made accessible and validly incorporated before the contract was concluded is authoritative in each case.

1 Scope and Components of the Contract

1.1 These General Terms and Conditions ("GTC") apply to vehicle rental agreements between Rigitrade AG (the "Lessor") and the natural person or legal entity named in the respective rental agreement (the "Renter").

1.2 The components of the contract, insofar as validly agreed, are: the individual rental agreement, these GTC, the booking and pricing terms made accessible before the contract was concluded, expressly agreed additional terms, and the handover and return reports. In the event of conflict, individually negotiated and expressly deviating contractual provisions take precedence. Mandatory law remains reserved.

1.3 The GTC must be made accessible to the Renter before or at the latest upon conclusion of the contract. For online bookings, the Renter must be given a reasonable opportunity to view and agree to the GTC before submitting the binding booking declaration. The consent and the version used should be documented in a verifiable manner.

1.4 Special terms for private or tourist rentals, cross-border trips and professional passenger transport apply only insofar as they were communicated transparently before the contract was concluded and validly incorporated into the contract.

1.5 Mandatory statutory provisions, in particular mandatory consumer protection and data protection provisions, take precedence over conflicting contractual provisions.

2 Booking, Conclusion of the Contract and Rental Period

2.1 The individual rental agreement specifies in particular the vehicle, the start and end of the rental, the place of handover and return, the rental price, the payment terms, the deposit, the mileage arrangement, the purpose of use, the agreed insurance, the deductible and any expressly agreed additional services.

2.2 A non-binding enquiry does not yet establish a rental agreement. A contract is concluded when the Lessor confirms the booking or the parties conclude it with legal effect in another way.

2.3 The rental period is governed by the times agreed in the rental agreement. An extension is binding only if the Lessor expressly confirms it. A request for an extension does not count as consent. The Renter must request an extension in good time and, until the extension is confirmed, return the vehicle at the originally agreed time.

2.4 Cancellations, changes to bookings, no-shows, early returns and refunds are governed by the booking terms communicated to the Renter and validly agreed before the binding booking, and by mandatory law. Cancellation or processing fees not communicated in advance are not established by these GTC alone.

2.5 Rental prices, deposits, deductibles, mileage limits, prices for additional kilometres, fuel or charging terms, delivery and collection costs and other additional services must be shown transparently before the contract is concluded or set out in the rental agreement. Additional services that have not been agreed are not owed.

2.6 The Lessor may refuse the handover if essential contractual requirements are not met, required payments or securities are outstanding, or there are specific, objectively justified doubts about identity, entitlement to drive, payment processing or safe use in accordance with the contract. Statutory claims remain reserved.

3 Identity, Driving Licence and Authorised Drivers

3.1 Before the vehicle is handed over, the Renter must prove their identity with a valid official document and present a driving licence valid for the vehicle. The Lessor may collect and document the information required for concluding the contract, for the entitlement to drive and for the legitimate enforcement of claims, insofar as this is permissible under data protection law and proportionate.

3.2 For foreign driving licences, the Renter must meet the recognition requirements applicable in Switzerland. An international driving permit or a translation must also be presented where this is legally required; it does not replace the national driving licence.

3.3 The minimum age, the minimum period of holding a driving licence, any surcharges and other eligibility requirements must be communicated before the contract is concluded and, where relevant, set out in the rental agreement.

3.4 The vehicle may be driven only by the Renter and by additional drivers who are expressly authorised in the rental agreement or in a supplement confirmed by the Lessor. Additional drivers must be identified, and their entitlement to drive checked, before the first journey.

3.5 The Renter may not leave the vehicle to any person who is not authorised, not entitled to drive, not fit to drive or barred from driving under the applicable law. The Renter must take reasonable measures to prevent unauthorised use.

3.6 The Renter shall inform the Lessor without delay if a required entitlement to drive has been withdrawn, restricted or invalidated or has otherwise ceased to exist.

3.7 The Lessor may refuse the handover or, if the vehicle has already been handed over, take lawful protective measures if required documents are missing or subject to well-founded doubt, eligibility requirements are not met or specific circumstances indicate that the vehicle would not be used safely or in accordance with the contract.

4 Permitted Use and Prohibited Uses

4.1 The vehicle may be used only for the purpose agreed in the rental agreement and within the agreed area. Private holiday and leisure trips are permitted if private use has been agreed.

4.2 Professional passenger transport, taxi and platform rides, the commercial transport of goods and other commercial uses are permitted only if the specific use is expressly agreed in the rental agreement and is permissible under the law and the insurance contract.

4.3 Without the Lessor's express consent, given in writing or documented in text form, the following are prohibited in particular:

a) leaving, passing on or subletting the vehicle to persons who are not authorised, and transferring the rental agreement;
b) use for unlawful purposes;
c) driving under the influence of alcohol, drugs or any other substance that impairs fitness to drive;
d) races, motorsport events, driver training, competitions, test drives or transporting passengers or goods for payment, unless expressly agreed;
e) overloading, exceeding the permitted seating or weight limits, or use contrary to essential manufacturer specifications;
f) smoking or vaping in the vehicle;
g) tampering with, removing, damaging or deactivating without authorisation any GPS, tracking or security devices;
h) continuing to drive despite a recognisable safety-relevant defect or a warning message, if continuing is not safe or not justifiable;
i) cross-border use contrary to clause 5;
j) use for towing, pulling, racing or other special purposes for which the vehicle is not approved or equipped.

4.4 The Renter shall use the vehicle with care, safely and in accordance with the operating instructions and manufacturer specifications. Technical modifications, repairs or installations may be made only with the Lessor's consent, except for necessary immediate measures under clauses 7.5 and 9.

4.5 In the event of a material breach of contract, the Lessor may, in accordance with the applicable law, demand performance of the contract, terminate the contract and demand the return of the vehicle. Where appropriate and legally required, a deadline for remedying the breach must be set. In serious or urgent circumstances, immediate measures permitted by law remain reserved.

5 Trips Abroad and Geographical Restrictions

5.1 Trips abroad are permitted only to countries that have been expressly approved for the specific vehicle and rental. The approved countries must be recorded in the rental agreement, in the booking confirmation or in a list of countries made accessible before the contract was concluded and incorporated into it.

5.2 Before setting off, the Renter must check whether the vehicle documents, insurance cover, entry requirements, road charges and any breakdown assistance services are valid for the countries planned. The Renter must comply with the traffic and other statutory regulations applicable in each case.

5.3 Trips to countries that have not been approved, and uses that breach or jeopardise the insurance cover, are prohibited.

The Lessor's consent extends the insurance cover only if the insurance cover actually exists.

5.4 The Renter bears the tolls, vignettes, parking fees, environmental-zone charges and other use-related road charges legally attributable to the Renter, insofar as they arise during the rental period.

6 Rental Price, Mileage, Fuel and Charging

6.1 The rental price, the mileage limit, the price of additional kilometres, the arrangement on fuel or charge level and additional services are governed by the rental agreement and by the pricing terms validly agreed before the contract was concluded.

6.2 Unless otherwise agreed, the Renter bears the fuel and charging costs incurred during the rental period. The vehicle must be returned with the agreed fuel or charge level.

6.3 Missing fuel or charge, additional kilometres and additional services may be charged only at the prices previously communicated transparently and validly agreed. If there is no valid price agreement, only claims that are owed by law and proven may be asserted.

6.4 The Renter must use the prescribed fuel and follow the operating and charging instructions. The Renter is liable for damage resulting from the wrong fuel, incorrect operation or use contrary to the contract only insofar as the statutory and contractual requirements are met.

6.5 Parking fees, tolls, vignettes, environmental-zone charges, traffic charges and other use-related costs are borne by the Renter insofar as they arose during the rental period, are attributable to the Renter and can legally be passed on to the Renter. Fines imposed by authorities are not passed on as the Lessor's own fine but are dealt with under the applicable statutory rules.

7 Upkeep, Maintenance, Damage, Tyres and Cleaning

7.1 As a rule, the Lessor bears the costs of regular scheduled maintenance, the usual seasonal tyre change, the motor vehicle tax and the motor vehicle liability insurance it has taken out, unless something else that is valid and permissible has been agreed in the rental agreement.

7.2 Ordinary mechanical repairs and technical defects for which the Renter is not responsible are, as a rule, borne by the Lessor. Mandatory statutory rights remain reserved.

7.3 Before setting off and during the rental period, the Renter must, within reason, pay attention to obvious defects, warning messages, tyre damage and other safety-relevant irregularities. The Renter reports any such findings without delay.

7.4 In the event of safety-relevant warning messages or significant defects, the Renter must stop at a safe place and inform the Lessor without delay. Continuing the journey is permitted only if it is safe and justifiable in the circumstances or has been authorised accordingly. Instructions must not be followed if they would endanger persons or be unlawful.

7.5 As a rule, repairs may be arranged only with the Lessor's prior consent. This does not apply to necessary, proportionate immediate measures to avert danger or to prevent significant consequential damage if it is not possible or not reasonable to make contact in time. Receipts must be kept and sent to the Lessor as soon as possible.

7.6 Tyre and rim damage

a) Duty of care: The Renter must drive the vehicle with due care and avoid damage caused by improper handling. This applies in particular to approaching or driving over kerbs, pavement edges and road edges and to avoidable contact with obstacles.
b) Renter's liability: If the Renter culpably causes damage to a tyre or rim, in particular cuts or tears, sidewall damage or damage from rim contact, the Renter is liable, to the extent permitted by law, for the damage actually incurred, necessary and proven. Any insurance cover and contractual limitations of liability remain reserved.
c) Repair and replacement: The reasonable actual costs of a professional repair may be charged or - if a repair is not technically safe, not professionally possible or not economically reasonable - of the necessary replacement, including the necessary fitting costs. For a tyre replacement, the age, tread, condition and remaining useful value of the damaged tyre must be taken into account appropriately. A new part must not lead to unjustified enrichment without objective reason.
d) Replacing both tyres on an axle: The replacement of both tyres on the same axle may be charged only if it is objectively necessary under applicable regulations, binding manufacturer specifications or the specific condition of the tyres and vehicle.
e) Handling fee: For the necessary handling of tyre or rim damage culpably caused by the Renter, a handling fee of at

most CHF 100.- per case of damage may also be charged, provided that it was transparently agreed before the contract was concluded, is legally permissible and covers a reasonable, comprehensible handling effort in the specific case. The fee must not lead to double charging for services already paid for or to a disproportionate burden on the Renter. Mandatory statutory provisions remain reserved.
f) Loss of rental income and further damage: Proven loss of rental income and other direct damage may also be claimed insofar as the statutory requirements are met, the amount has been proven and the same damage has not already been compensated otherwise.
g) Exclusion of liability: The Renter is not liable insofar as the damage cannot legally be attributed to the Renter, in particular in the case of a material defect not caused by the Renter or an unavoidable external influence.

7.7 Normal wear and tear in accordance with the contract is not damage. The condition on takeover and on return should be documented by reports and, where appropriate, dated photos.

7.8 In the event of excessive soiling or soiling contrary to the contract that requires specialist cleaning beyond the usual cleaning, the Lessor may charge the reasonable and proven cleaning costs actually incurred. Examples are heavy smoke or odour contamination, considerable animal hair, spilled liquids or heavy soiling. A minimum flat rate of CHF 150 may be charged only if it was expressly agreed before the contract was concluded and is reasonable and legally permissible in the specific case; otherwise the proven actual costs apply.

7.9 The loss or theft of, or damage to, keys, the vehicle registration document, licence plates, charging cards or accessories provided must be reported without delay. The Renter is liable for the necessary, reasonable and proven costs of replacement or restoration insofar as the Renter is legally responsible for the loss or damage.

8 Insurance, Deductible and Liability

8.1 The insurance cover specified in the rental agreement and the applicable insurance terms are authoritative. Before the contract is concluded, the Renter is informed of the agreed cover, any deductible and material exclusions. The Lessor cannot promise any cover that the insurance contract does not provide.

8.2 Insurance cover for professional passenger transport, taxi or platform rides, trips abroad or other special uses exists only if the specific use has been expressly agreed and is actually insured.

8.3 Under the law and the valid contract, the Renter is liable in particular for:

a) damage to the rental vehicle, insofar as the Renter culpably caused it or is answerable for it by law;
b) an expressly agreed deductible, insofar as there is a loss event that is covered or subject to the deductible under the contractual terms and the Renter is answerable for it;
c) damage and costs not covered, insofar as they are legally attributable to the Renter;
d) traffic and use charges legally falling to the Renter and the consequences of the Renter's traffic offences;
e) legitimate claims of third parties, insofar as the Renter is liable for them by law.

8.4 A total loss, depreciation, loss of use, loss of rental income and other consequential damage may be claimed only insofar as there is a statutory or valid contractual basis, compensable damage and its amount have been proven, the damage is attributable to the Renter and no double compensation results. Any residual value, expenses saved and an appropriate allowance for the condition of the vehicle must be taken into account insofar as legally required.

8.5 The Lessor's liability is governed by the applicable law. An exclusion or limitation of liability applies only to the extent permitted by law. Mandatory liability provisions, in particular the statutory rules on liability for intent and gross negligence, remain reserved.

8.6 Within reason, both parties must help to prevent and limit damage. The Renter must inform the Lessor without delay, take reasonable protective measures, not culpably jeopardise the insurance cover and cooperate appropriately in the handling of the claim.

9 Accident, Breakdown, Reachability and Claims Management

9.1 Reachability:

The Renter ensures that the telephone number given when booking is, as a rule, reachable during the rental period and that their mobile phone is sufficiently charged. In the event of an accident, a breakdown or a problem with the vehicle, the Renter must answer the Lessor's call-back attempts as soon as reasonably possible. Insofar as safe and reasonable, the Renter should temporarily set silent or "Do not disturb" functions so that urgent call-backs can be noticed. A response within 10 minutes of becoming aware of a call-back attempt is expected, insofar as this is possible

and reasonable in the specific circumstances; safety, emergency measures, sleep, lack of reception and other legitimate obstacles take precedence. Between 00:00 and 07:00, too, this expectation applies only within these limits.

9.2 Breakdowns and technical defects:

In the event of a breakdown, a warning message or a technical defect, the Renter must, where necessary, stop the vehicle at a safe place, take warning and protective measures and inform the Lessor by telephone. The Renter must follow reasonable and safe instructions. If the Lessor cannot be reached, the Renter should also send a message with a short description of the problem and the location and wait for a call back, insofar as this is safe and reasonable. A waiting time of 15 minutes does not apply if immediate action is necessary to avert danger, to secure the accident site or to prevent significant consequential damage.

9.3 Accidents between 00:00 and 07:00:

a) The Renter secures the accident site, gives any necessary first aid and alerts the competent emergency services without delay if anyone is injured or there is immediate danger. The Renter complies with statutory reporting obligations and official instructions.
b) The police must be notified if this is required by law or the circumstances require it. For accidents between 00:00 and 07:00, the Renter should, as a rule, contact the police on 117 to clarify how to proceed, insofar as this is safe and appropriate in the circumstances. This contractual requirement must not delay any emergency measure and does not create any obligation to act contrary to police instructions.
c) Insofar as safe and possible, the Renter documents those involved, contact details, licence plates, insurance details, witnesses, how the accident happened and visible damage. Where possible, the Renter draws up an accident report and takes meaningful photos of the vehicles, damage, positions and accident site.
d) After securing the accident site, the Renter contacts the Lessor. If the Lessor cannot be reached or breakdown assistance is needed, the breakdown service notified by the Lessor for the specific vehicle must be contacted. The necessary telephone number and contract reference are given separately in the handover documents or in the vehicle-specific emergency information.
e) The Renter keeps relevant photos, reports, police reference numbers and receipts and makes them available to the Lessor as soon as possible.

9.4 Towing services, breakdown services and garages:

Without the Lessor's prior consent, the Renter may, as a rule, not instruct a towing service, breakdown service or garage in the Lessor's name or at the Lessor's expense. This does not apply to necessary and proportionate immediate measures to avert danger to persons, to secure the vehicle or to prevent significant consequential damage if it is not possible or not reasonable to make contact in time. The Lessor must be informed as soon as possible; receipts and reasons must be documented.

9.5 Costs of an unapproved instruction:

The costs of a third party instructed without the required approval may be charged to the Renter only insofar as the instruction constitutes a breach of contract attributable to the Renter, the costs were actually incurred and are necessary, reasonable and proven, and there is a statutory or valid contractual basis. The mere lack of consent does not automatically create an obligation to pay, in particular if a necessary emergency measure was involved. Double charging is excluded.

9.6 Accident, theft and other reporting of damage:

In the event of an accident, the Renter secures the accident site, gives first aid where necessary and, if needed, alerts the ambulance service on 144. The police must be notified if required by law or necessary in the circumstances. Accidents, damage, theft, loss and other events relevant to insurance must be reported to the Lessor without delay, if possible within 24 hours of becoming aware of them. If this is not possible or not reasonable because of injuries, official measures or other important reasons, the report must be made without delay once the obstacle has ceased. Without the relevant authority, the Renter may not make any binding acknowledgement of debt or enter into settlements on the Lessor's claims. The Renter must cooperate truthfully and appropriately in investigating the damage.

9.7 Mitigation of damage and safety:

The Renter takes reasonable measures to limit damage and costs and keeps available receipts, photos and documents. No provision obliges the Renter to endanger themselves or third parties, to delay necessary first aid or to breach statutory obligations.

10 Return, Report and Replacement Vehicle

10.1 The vehicle must be returned at the agreed place and time with all keys, documents, cards and accessories. The Renter may not leave the vehicle unattended at any other place unless the Lessor has expressly confirmed this or an emergency leaves no reasonable alternative.

10.2 On handover and on return, the condition, existing damage, mileage, fuel or charge level and accessories should be documented. Photos may be used in addition. The Renter should receive a copy of the report or be able to access it in an appropriate manner.

10.3 The Renter should report recognisable defects or damage on takeover, if possible before setting off, and have them documented. A failure to report does not in itself create automatic liability for damage that cannot be proven to have been caused by the Renter. The statutory rules on the burden of proof remain reserved.

10.4 New damage found on return should be documented as promptly as possible and communicated to the Renter. Where an inspection on return is not possible, the Lessor should communicate its findings without undue delay after discovering them. Responsibility is governed by the law and the contract.

10.5 A late return must be notified to the Lessor without delay. The extension is binding only once expressly confirmed. For a culpable, unjustified late return, agreed and legally permissible compensation and further proven damage may be claimed. Double compensation is excluded.

10.6 In the event of a breakdown or technical defect not caused by the Renter, the Lessor endeavours, insofar as available and organisationally reasonable, to offer a replacement vehicle or another appropriate solution. An entitlement to an equivalent replacement vehicle exists only insofar as it has been expressly agreed or is owed by law. Mandatory statutory rights remain reserved.

10.7 The return is deemed to have taken place as soon as the vehicle and the items provided have actually been handed over to the Lessor or to a person authorised by the Lessor, or the Lessor has otherwise confirmed the return. Merely parking or leaving the vehicle without an agreed return procedure is not necessarily sufficient.

11 Contractual Penalties and Flat-Rate Charges

11.1 A contractual penalty is owed only if it was clearly, transparently and validly agreed before the contract was concluded, the specifically described circumstances are met and the statutory requirements are fulfilled. The following overview applies only if the respective item is listed in the individual rental agreement or in a fee overview expressly incorporated before the contract was concluded:

- Unjustified late return: CHF 100 per calendar day or part thereof, provided that this contractual penalty has been validly agreed, is reasonable in the circumstances and is legally enforceable. It is not automatically owed in addition to compensation for the same damage.
- Material, culpable false statement of the residential or postal address: CHF 500, provided that the statement is relevant to the conclusion of the contract, the provision of the vehicle or the legitimate enforcement of claims and the penalty is reasonable in the specific case and validly agreed.
- Leaving the vehicle to a driver who is not authorised: CHF 500, provided that it is validly agreed and legally enforceable in the specific case.
- Smoking or vaping in the vehicle: CHF 250, provided that it is validly agreed and reasonable; proven additional cleaning costs may be claimed only after crediting any item already paid for.
- Intentional or culpable tampering with, removal or unauthorised deactivation of a GPS or tracking system: CHF 800, provided that it is validly agreed and reasonable and legally enforceable in the specific case.
- Material, culpable breach of the duty to report an accident: CHF 500, provided that it is validly agreed, the breach of duty is significant and the penalty is reasonable in the specific case.

Tyre and rim damage: Clause 7.6 applies. Any handling fee is governed exclusively by clause 7.6(e) and may cover at most the amount stated there and the handling effort actually incurred, reasonable and legally recoverable. It is not automatically owed. An additional flat-rate contractual penalty of CHF 100.- per tyre is not established by this provision alone.

11.2 The contractual penalty does not release the Renter from ending a breach of contract, returning the vehicle or complying with statutory duties to cooperate.

11.3 Excessively high contractual penalties may be reduced by the competent court under Art. 163 para. 3 CO.

11.4 Further damages may be claimed only insofar as this is permitted by law, additional damage has been proven and no double compensation results. Contractual penalties or compensation already paid must be credited in the calculation insofar as they cover the same damage.

12 Deposit, Payment Default and Fees

12.1 The amount, method of payment, due date and permitted use of the deposit, and the accepted means of payment, are set before the contract is concluded in the rental agreement or in the booking terms.

12.2 The deposit serves to secure legitimate claims arising from the rental relationship. The Lessor may set off only claims that are actually owed, due and legally offsettable and must itemise the deductions comprehensibly. Mandatory statutory rights remain reserved.

12.3 If, on return, a specific claim cannot yet be finally quantified, only an appropriate part of the deposit may be withheld, provided that there is a legal basis for this and the amount is in reasonable proportion to the expected claim. The undisputed balance not needed is repaid without undue delay. The mere abstract possibility of future claims does not justify withholding it indefinitely.

12.4 The Lessor endeavours to repay the deposit without delay after the vehicle has been properly returned and the necessary checks have been carried out. Insofar as there are no specific, justified outstanding claims, the repayment should be initiated within 10 working days at the latest. When the amount is actually credited may depend on the bank or the payment service provider. Clause 12.3 applies to specific claims that cannot yet be quantified.

12.5 The following fees may be charged only if they were expressly and transparently agreed before the contract was concluded, are legally permissible and reasonable in the specific case and no mandatory statutory rules preclude them:

- Processing a traffic fine or an authority's request for information about the vehicle's keeper: CHF 20 per case;
- Reminder in the event of payment default: CHF 20 per reminder, insofar as legally permissible;
- Internal administrative work in connection with debt enforcement proceedings: CHF 80, insofar as legally permissible and reasonable;
- Organising a necessary recovery of the vehicle: at least CHF 400, only insofar as there is a valid basis and the amount is reasonable in the specific case; third-party costs actually incurred may be claimed in addition only insofar as there is no double charging;
- Storage of the vehicle: CHF 50 per day, only insofar as there is a valid basis and the fee does not unreasonably exceed the actual, reasonable and attributable costs.

12.6 External costs, official fees and internal processing fees must be distinguished from one another. On request, the Lessor discloses the calculation and available receipts to an appropriate extent. External costs may be charged only if they were actually incurred and are necessary, reasonable, legally attributable and recoverable.

12.7 Charging the same expense or damage more than once under different fee or damages items is excluded. Statutory default interest and debt collection or legal costs actually owed remain reserved, insofar as the statutory requirements are met.

13 Reclaiming the Vehicle and Legal Action

13.1 After the agreed rental period has expired or the rental agreement has been validly terminated, the Renter must return the vehicle on time.

13.2 If the vehicle is not returned, the Lessor may demand its return and, where appropriate or legally required, set a deadline. In urgent cases or where the vehicle is in specific danger, lawful urgent measures remain reserved.

13.3 Reasonable, necessary and proven costs of recovering the vehicle may be charged to the Renter insofar as the Renter culpably caused the recovery and there is a statutory or valid contractual basis.

13.4 In the event of significant payment default, unauthorised passing on of the vehicle, tampering with security devices or other material breaches of contract, the Lessor may take proportionate measures permitted by law to secure and reclaim the vehicle. In doing so, it may not resort to unlawful self-help or infringe the rights of third parties.

13.5 If the vehicle is not returned, or in the event of other significant breaches of contract, the Lessor may assert its civil-law claims and, where appropriate, inform the competent authorities. A late return or other breach of contract does not automatically constitute a criminal offence; the assessment under criminal law is a matter for the competent authorities and courts.

14 GPS Tracking, Vehicle Location and Remote Immobilisation

14.1 The vehicle may be equipped with GPS tracking or a fleet management system. Location and vehicle data may be processed only on a permissible legal basis and for specified, legitimate and proportionate purposes, in particular for theft prevention, securing the vehicle, fleet management, technical diagnosis or the lawful reclaiming of the vehicle.

14.2 Before or when collecting the data, the Lessor provides an accessible privacy policy containing the information required under the applicable data protection law. This includes in particular the identity and contact details of the controller, the purposes of processing, the categories of data, the recipients or categories of recipients, the retention period or the criteria for determining it, any disclosures abroad and the rights of data subjects.

14.3 Location data is retained only to the extent required and for as long as necessary. Only authorised persons and service providers have access to it. Appropriate technical and organisational security measures must be taken. It is disclosed only on a permissible legal basis.

14.4 The Renter may not tamper with, remove, damage or deactivate without authorisation any tracking or security devices. Malfunctions must be reported to the Lessor without delay.

14.5 A technical remote immobilisation may be used only if it is legally permissible, necessary and proportionate in the specific case. In particular, it may not take place while the vehicle is being driven or in a situation in which it could endanger the driver, occupants or other road users. An immobilisation may not be used as an impermissible means of pressure to collect disputed claims. The vehicle must be reclaimed by lawful means.

14.6 Liability in connection with tracking, remote immobilisation and reclaiming the vehicle is governed by the applicable law. Mandatory liability provisions remain reserved.

15 Identity, Information and Duties to Cooperate

15.1 The Renter confirms that their information and the identity documents, driving licences, permits and other documents they have presented are, to the best of their knowledge, complete, correct and valid.

15.2 This applies in particular to name, identity, date of birth, residential and postal address, contact details, payment details, and the entitlements to drive and permits required for the agreed use of the vehicle.

15.3 Material changes to contact or postal details, and the loss of a required entitlement to drive, must be notified to the Lessor without delay.

15.4 Where there is objective cause, the Lessor may request current proof insofar as this is necessary, proportionate and permissible under data protection law for concluding the contract, safely handing over the vehicle, performing the rental relationship or legitimately enforcing claims.

15.5 Intentionally false or misleading information and forged or invalid documents may constitute a material breach of contract. Whether the facts are relevant under criminal law is assessed by the competent authorities and courts.

15.6 Under the statutory provisions, the Renter is liable for proven and legally attributable damage that they culpably cause through false information or incorrect documents. Recoverable loss of rental income, costs of returning the vehicle, and necessary debt collection and legal costs may be claimed only insofar as they are recoverable by law, reasonable and proven. Double compensation is excluded.

16 Professional Passenger Transport and Use of Platforms

16.1 Professional passenger transport, taxi rides or platform rides are permitted only if they have been expressly agreed in the individual rental agreement.

16.2 Throughout the rental period, the Renter is responsible for complying with the statutory, regulatory and contractual requirements applicable to the agreed use. These include in particular the required entitlements to drive, permits and the applicable regulations for professional passenger transport.

16.3 The Renter may use the vehicle only for the agreed purpose and must ensure that the vehicle registration, equipment and actual insurance cover permit the use. The Lessor guarantees neither admission by a platform nor any particular turnover, number of jobs or uninterrupted availability of the vehicle.

16.4 The Renter shall inform the Lessor without delay of the loss, restriction or withdrawal of any authorisation required for the agreed use. If an essential requirement ceases to be met, the Lessor may prohibit further use and demand the return of the vehicle in accordance with the applicable law.

17 Data Protection and Notices

17.1 The Lessor processes personal data to handle enquiries, to conclude and perform the rental agreement, to process payments, to fulfil statutory obligations, to handle claims, to manage and secure the vehicles and to safeguard legitimate interests, to the extent permitted by law.

17.2 Details of the processing of personal data, in particular on recipients, retention periods, disclosures abroad, GPS and location data and the rights of data subjects, are set out in the separate privacy policy. It is easily accessible and must be available in an appropriate manner before or when the data is collected. These GTC do not replace the privacy policy.

17.3 Notices relating to the rental relationship may be sent to the postal and electronic contact addresses given in the rental agreement, insofar as the notice in question is legally permissible in this form. For declarations subject to a legal form requirement, the statutory form requirements remain reserved.

17.4 The Renter must notify material changes to their contact and postal address without delay. The Lessor may send necessary notices to the address last validly notified, insofar as permitted by law; mandatory rules on the receipt of declarations remain reserved.

18 Final Provisions

18.1 Entire agreement:

The individual rental agreement, these GTC and expressly incorporated supplementary agreements constitute the agreement between the parties on the rental relationship concerned. Individually negotiated and expressly deviating provisions take precedence over these GTC.

18.2 Amendments:

Amendments and supplements must be made in text form, unless the law requires a stricter form or the parties have validly agreed on a stricter form. Statutory requirements for amendments to the contract and for proving an agreement remain reserved.

18.3 No waiver:

The temporary failure to exercise a right, or its delayed enforcement, does not as such constitute a waiver of that right.

18.4 Force majeure:

To the extent permitted by law, neither party is liable for failures of performance directly attributable to extraordinary events that are beyond control and could not be avoided despite reasonable care. The affected party informs the other party without delay where possible and takes reasonable measures to limit the effects. Mandatory statutory rights and liability rules remain reserved.

18.5 Partial invalidity:

Should any provision of these GTC be or become invalid or unenforceable in whole or in part, the remaining provisions remain in force to the extent permitted by law. The applicable statutory provisions apply in place of the invalid provision. This clause does not provide for automatic replacement by a provision that comes as close as possible economically.

18.6 Governing law:

Substantive Swiss law applies, insofar as its application is permitted by law. Mandatory provisions of private international law and mandatory protective provisions, in particular for consumers, remain reserved.

18.7 Place of jurisdiction Zurich:

Insofar as an agreement on jurisdiction is permitted by law, Zurich, Switzerland, is agreed as the place of jurisdiction for disputes arising from or in connection with the rental relationship. Mandatory statutory places of jurisdiction and restrictions for consumer contracts remain reserved. Insofar as a prior agreement on jurisdiction is not permitted or not valid, the statutory places of jurisdiction apply.